

1. What is Ownership? How many kinds of Ownership are there?

Ownership is the legal right of a person over a property. It means the owner has full control, use, enjoyment, and disposal power over that property according to law. In law, ownership is considered the highest right a person can have over a thing. The owner can use the property, sell it, gift it, or transfer it to others. However, ownership is always subject to legal restrictions. The concept of ownership comes from Roman law and is widely used in modern legal systems. According to Salmond, ownership is a bundle of rights recognized by law. Ownership gives both rights and duties to the owner.

According to HIBBERT, ownership consists of **FOUR** kinds of rights:

1. Right to use of a thing;
2. Right to exclude others from using the thing;
3. Disposing of the thing; and
4. Right to destroy it.

2. What is a Person? How many kinds of Persons are there?

In law, a person means any being or entity that has legal rights and duties. A person is someone who can sue or be sued in court. The term “person” in legal language does not only mean human beings. It also includes organizations or institutions that law recognizes as persons. Legal personality is important because only a person can hold property, enter contracts, and claim legal protection. Without legal personality, no one can exercise legal rights. So, in law, the meaning of person is wider than in everyday language.

Kinds of Persons:

There are mainly two types:

1. **Natural Person** – a human being with legal rights and duties. Example: any citizen.
2. **Artificial (Legal) Person** – a non-human entity recognized by law as a person. Example: company, corporation, government body.

3. Distinguish between Natural Person and Artificial Person

A natural person is a real human being, while an artificial person is an entity created by law. A natural person exists by birth, but an artificial person exists only after legal formation. Natural persons have physical bodies, but artificial persons do not have physical existence. Natural persons can think and act naturally, whereas artificial persons act through representatives or agents. The life of a natural person ends with death, but an artificial person may continue for many years until dissolved by law. Natural persons can marry and vote, but artificial persons cannot. Natural persons have unlimited liability in many cases, while artificial persons often have limited liability. Artificial persons must act within powers

given by law or constitution. Both types can own property and sue or be sued. Both are recognized as legal persons by law. However, their nature, rights, and limitations are different.

1. The existence of artificial person is dependent on law, while the existence of natural person is independent of law.
2. The duration of existence of artificial person is often longer than the natural period of human life.
3. Natural person acts for himself; while artificial person can act only through the authorized agent.

Basis	Natural Person	Artificial Person
Meaning	A real human being	A legal entity created by law
Creation	Exists by birth	Created through legal process
Physical existence	Has physical body	No physical body
Death	Ends with death	Ends by dissolution law
Thinking ability	Can think and act naturally	Acts through agents
Rights	Has all legal and human rights	Has only legal rights given by law
Liability	Usually unlimited	Often limited
Marriage/Voting	Can marry and vote	Cannot marry or vote
Example	Any citizen	Company, corporation

4. What is Possession?

Possession means having physical control over a thing along with the intention to control it. In simple words, possession is the holding or occupancy of property. It is an important concept in property law. Possession does not always mean ownership; a person may possess something without owning it. For example, a tenant possesses a house but is not the owner. Law protects possession because it helps maintain social order. Possession has two main elements. The first is **Corpus Possessionis** (physical control). The second is **Animus Possidendi** (intention to possess). Both elements must exist for legal possession. Possession can be lawful or unlawful. It can also be actual or constructive. Courts often presume that the possessor has certain rights unless proven otherwise. Thus, possession is a strong legal concept even without ownership.

5. How many kinds of Property are there? Are there differences among them?

Property means anything that can be owned and has value in the eyes of law. It includes both physical objects and legal rights. Property is an important subject of ownership and possession. In law, property is mainly classified into different types based on nature and characteristics.

KINDS OF PROPERTY:

Property is mainly of **TWO** kinds, namely,

(1) Corporeal, and

(2) Incorporeal

Corporeal property can be further divided into moveable and immoveable property and real and personal property.

Incorporeal property is of two kinds; *rights in repropria* and *rights in realiena* or encumbrances.

☐ **Corporeal Property** – tangible property that can be touched, like a table or land.

☐ **Incorporeal Property** – intangible rights, like copyright or patents.

☐ **Movable Property** – property that can be moved from one place to another, such as money, furniture, or vehicles.

☐ **Immovable Property** – property that cannot be moved, such as land and buildings.

Basis	Movable Property	Immovable Property
Meaning	Can be moved	Cannot be moved
Nature	Temporary or changeable	Permanent
Transfer	Easy transfer	Requires legal formalities
Example	Car, money, furniture	Land, building

Basis	Corporeal Property	Incorporeal Property
Nature	Tangible	Intangible
Physical existence	Yes	No
Touch	Can be touched	Cannot be touched
Example	House, book	Copyright, patent